

BEFORE THE
FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

WORLDWIDE NEXUS LOGISTICS, LLC,
Complainant,

v. Docket No. 25-15

WALLENIOUS WILHELMSSEN OCEAN AS,
Respondent.

COMPLAINANT'S RESPONSES TO RESPONDENT'S
PROPOSED FINDINGS OF FACT

1. Admitted.
2. Admitted.
3. Admitted.
4. Admitted that Clause 17 contains the quoted language. Denied to the extent Respondent asserts or implies that this contractual provision governs or disposes of Complainant's claims under the Shipping Act.
5. Admitted.

6. Admitted.

7. Admitted.

8. Admitted.

9. Admitted.

10. Admitted.

11. Admitted.

12. Admitted that WNL did not own the cargo and did not take title to the boats.

13. Admitted.

14. Admitted.

15. Admitted that the January 2, 2024 manifest did not list the three subject shipments.

16. Admitted that the January 26, 2024 corrected manifest lists the three subject shipments.

17. Denied as stated. Complainant testified that he did not personally observe the actions of Peruvian customs authorities. However, the record contains documentary evidence concerning the customs determination, including communications from Respondent and its agents, internal admissions regarding the omission of the three sea waybills, and customs-related records contained in the evidentiary record. The finding overstates the scope and significance of Complainant's testimony.

18. Admitted that Complainant testified he was not aware of any policy of Respondent permitting cargo to be manifested incorrectly. Denied to the extent the finding implies that the absence of Complainant's personal knowledge establishes the absence of any relevant policy, practice, procedure, or operational deficiency within Respondent's organization.
19. Admitted that Complainant testified he was not aware of any prior or subsequent instances in which Respondent failed to manifest cargo. Denied to the extent the finding implies that no such incidents occurred. Complainant's testimony addressed only his personal knowledge and did not constitute evidence concerning Respondent's overall operational history.
20. Admitted that Complainant's claim arises from the three shipments transported aboard MORNING LADY voyage EC311 that were omitted from Cargo Manifest No. 127-2023-488.
21. Admitted that Complainant testified he possessed no evidence of a history of manifest errors by Respondent. Denied to the extent the finding implies that Respondent has affirmatively established the absence of any such history.
22. Denied. The proposed finding constitutes a legal conclusion rather than a factual finding. Complainant admitted the timing of the filing and testified that no other action was filed. However, whether Complainant's claims are subject to, or barred by, any one-year contractual or statutory limitations period is a disputed legal issue presented by this proceeding and is not established by the cited testimony.
23. Denied. The proposed finding materially overstates the cited testimony. Complainant admitted that WNL did not own the cargo, did not reimburse customers for the value of the boats, and did not possess documentary evidence quantifying certain alleged damages. However, Complainant also testified regarding customer-related impacts, loss of business opportunities, reputational harm, and other commercial consequences arising from the seizure and confiscation of the cargo. The cited testimony does not establish that WNL suffered no loss of any kind.

Except as expressly admitted herein, Respondent's Proposed Findings of Fact are denied.

Respectfully submitted,

WORLDWIDE NEXUS LOGISTICS, LLC

By: /s/ Jean C. Lopez
Jean C. Lopez
President
Complainant, Pro Se

Dated: June 15, 2026